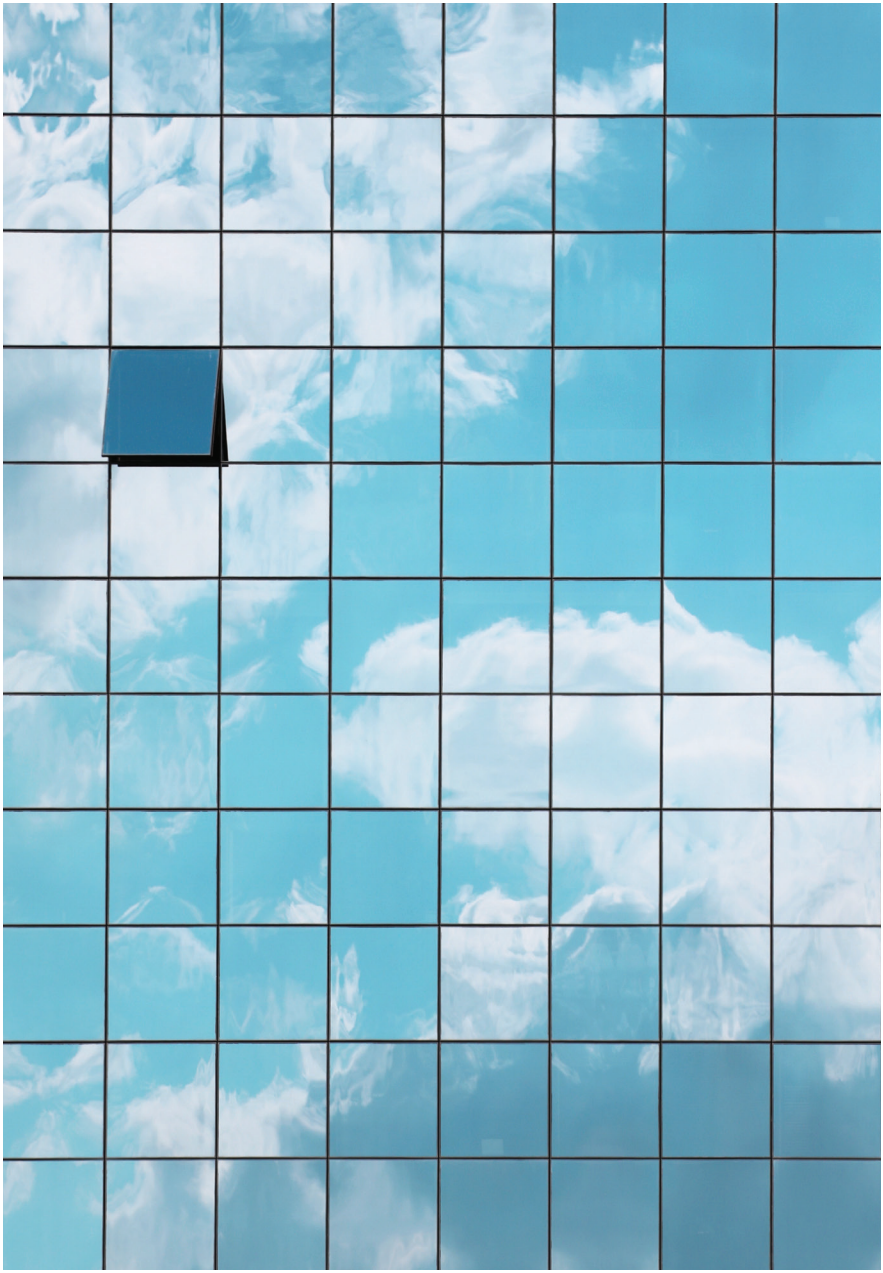

MINDFULNESS FOR LAWYERS

A short handbook
by Jon Krop, J.D.

mindfulnessforlawyers.com

Pain is inevitable.
Suffering is optional.

—M. Kathleen Casey

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01 INTRODUCTION

It's not easy being a lawyer. Our work can be fascinating and often rewarding, but it can also be stressful, exhausting, and overwhelming.

This handbook can help. It contains simple methods to help you manage your stress, enjoy your work, and perform at your best. These methods draw on mindfulness, a mental practice derived from ancient meditation techniques and validated by modern science.

I stumbled onto mindfulness during law school, and it's kept me sane, successful, and happy throughout my legal education and career. It's been my privilege to share these methods with thousands of lawyers and, now, with you.

I've kept this handbook short and straightforward so you can easily put these methods into practice. At the same time, I've been careful not to omit anything essential for a beginner, and I've tried to be as clear and precise as possible within this concise format.

I hope these mindfulness methods enrich your life and work the way they have mine.

Be well,

Jon Krop, J.D.

Be here now.

—Ram Dass

03

PRINCIPLES OF MINDFULNESS

Being in the present moment and out of your head.

Observing your experience as it is—without judgment.

- Seeing thoughts as thoughts rather than getting lost in them.
- Paying attention to sensory experience as a gateway to the present moment.
- Turning toward present experience rather than resisting, even when it's unpleasant.

04

BENEFITS OF MINDFULNESS

Reduced stress.
Overall increased job satisfaction.

Improved focus.
Example: a lawyer is able to research and draft motion papers well before the deadline, with few distractions.

Improved attention to detail.
Example: a lawyer is able to notice unfavorable nuances in proposed contract language.

Greater emotional resilience.
Example: a lawyer earns the judge's favor during oral argument by remaining calm, clear-headed, and civil while opposing counsel makes unreasonable allegations.

Enhanced interpersonal skills.
Example: a lawyer is able to facilitate collegial, effective two-way communication with junior lawyers and support staff, even when the team is under time pressure.

05

SITTING MEDITATION

THE POSTURE:

- Straight spine.
- Feet under the knees, flat on the floor.
- Try sitting toward the edge of the chair.
- For more, Google “posture-pedia” to find Stephanie Nash’s thorough posture guide.

THE TECHNIQUE:

- Rest attention on the sensations of breath at the nose.
- When you notice attention has wandered, gently return to the breath.
- Breathe normally.

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SITTING MEDITATION: POINTERS

- Meditation is not about emptying the mind. Let the whole rich landscape of sounds, sensations, and thoughts continue in the background.

- Your mind will wander, and that's okay. This isn't about stopping the wandering; that's impossible. It's about noticing and gently guiding the mind back.

- When you notice you've wandered, briefly savor that recognition before returning.

- Apply gentle effort. No need to strain.

- There is no failing at this, no doing well or poorly. There's only practicing or not.

- Optional: apply a light mental label to a distraction (e.g., "thinking," "itching").

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MAINTAINING A SITTING PRACTICE

DAILY PRACTICE WILL TRANSFORM YOUR DAY-TO-DAY EXPERIENCE FOR THE BETTER.

- Daily consistency trumps length of sit. Sitting for even one minute is fantastic.
- Sit first thing in the morning. It's the easiest way. If that's not workable, aim for the same time every day.
- If resistance arises, mentally shrink the session length until the resistance fades.

  ("Could I do 15 minutes? No, too much resistance. What about ten? Still too long; the thought puts me off. Okay, five? Hm, I feel like I could sit for five.")

- Use a timer (e.g., "Insight Timer" app).

Practice now.
Don't think you will
do more later.

—Dipa Ma

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MINDFULNESS METHODS FOR DAILY LIFE

Rest attention on the **breath at the nose**.

Mindful walking (walking meditation): rest attention on sensations in soles of the feet.

Mindful eating: eat slowly, experiencing the food with all of your senses.

Rest attention on an **entire sense field** (e.g., sound, body sensations).

If you get lost in thought: use the mental label **"thinking"** to let go of story mode.

The Mindful Pause (p. 17).

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STRESS IN THE LEGAL PROFESSION: STATISTICS

IN A 2016 STUDY OF 12,825 LAWYERS:

61%	of participants reported concerns with anxiety in their careers.
46%	of participants reported concerns with depression in their careers.
23%	were experiencing mild or higher levels of stress at the time of the study.
33%	were problem drinkers.

A 2013 STUDY OF 2,226 BRITISH LAWYERS FOUND THAT LAWYERS' PRIMARY CAUSES OF STRESS WERE:

60%	Workload
42%	Client expectations
18%	Number of hours

11 THE CONSEQUENCES OF STRESS

Stress causes cognitive and physiological impairment. You can't "power through."

EFFECTS ON JOB PERFORMANCE:

- Tendency to miss important details and make mistakes
- Trouble focusing, working efficiently, and meeting deadlines
- Tendency to react without thinking, leading to communication problems with adversaries, clients, and others.

EFFECTS ON WELL-BEING:

- Headache
- Fatigue
- Sleep problems
- Depression

All of humanity's problems stem from man's inability to sit quietly in a room alone.

—Blaise Pascal

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STRESS AND ANXIETY: THE USUAL APPROACH

Our intuitive coping method: avoid or resist the way we feel.

THE MOST COMMON STRATEGIES:

- Distract ourselves: social media, TV, food, socializing, etc.
- Dull ourselves: alcohol, drugs, etc.
- Ruminate: dive into our anxious thoughts.

You can't stop the waves, but you can learn to surf.

—Jon Kabat-Zinn

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STRESS AND ANXIETY: THE MINDFUL APPROACH

Resisting or avoiding unpleasant feelings only exacerbates them.

THE KEY: ACCEPTANCE, NOT AVOIDANCE.

- Emotions manifest partly as sensations in the body.
- Instead of flinching away from those sensations, tune into them.
- Let the feelings stay; be willing to feel them.
- Resist fleeing into anxious thinking.

“

Accept the present moment as if you’d invited it.

—Pema Chodron

”

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THE MINDFUL PAUSE

A 30-second "spot treatment" for stress and anxiety.

If attention wanders at any point, gently guide it back to the step you are on.

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1. Take a slow, deep breath.
2. Tune into whatever sensations you notice in your body, especially sensations that seem related to stress or anxiety. *(Duration: one in-breath or out-breath, or longer if you like.)*
3. Rest attention on the breath at the nose *(Duration: one in-breath or out-breath, or longer if you like.)*
4. Carry on with your day, but in an unhurried way.

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USING THE MINDFUL PAUSE

- No need to adopt a special posture.

- Practice the Mindful Pause when you are not stressed. Then, when you are stressed, you will remember to use it.

- Do not expect the Mindful Pause to make anxiety-related sensations or thoughts vanish. The problem is not that those sensations and thoughts are there; the problem is that we resist them.

- Useful for: inserting breaks into research, writing, and doc review, getting centered before a deposition, negotiation, meeting, or oral argument.

- If you get stressed during a meeting, you can use a "Mindful Mini-Pause." Take a slow, deliberate breath in. As you exhale, tune into sensations in your body.

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THE MINDFUL WORKDAY

Use a **Mindful Pause (p. 17)** or other **mindfulness methods (p. 9)** at defined points in your daily routine: when you first sit at your desk in the morning, before you get up for lunch, etc.

Eat lunch mindfully (p. 9). The mental rest and rejuvenation will help your productivity more than working while you eat.

When you need to walk somewhere—a partner's office, the bathroom, the water cooler—practice **mindful walking (p. 9)**.

Try alternating timed work sessions with short, timed breaks. Use breaks to take a **Mindful Pause (p. 17)** or practice another **mindfulness method (p. 9)** in a relaxed way. **Mindful walking (p. 9)** is especially good.

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GETTING BETTER SLEEP

As with anxiety, resisting sleeplessness only exacerbates it.

Being less concerned with falling asleep will help you sleep better.

- You can't will yourself to become sleepy.
- If you're not falling asleep, don't lie there and keep trying. It will only stress you.
- Get up, do something relaxing for about 30 minutes, then go back to bed. The relaxing activity should not involve digital screens. Repeat as needed.
- If you become sleepy, great. If not, don't worry about it.
- Remember: missing sleep is very common and isn't a big deal.

Many things—such as loving, going to sleep, or behaving unaffectedly—are done worst when we try hardest to do them.

—C.S. Lewis

ABOUT THE AUTHOR

Jon Krop, J.D., has taught mindfulness at Harvard, Yale, the Pentagon, the world's top law firms, Fortune 100 companies, public defenders' offices, and many other organizations.

After graduating from Harvard Law School, Jon clerked on the U.S. Court of Appeals for the Ninth Circuit and worked as a litigator at firms in Los Angeles and New York City.

Jon has practiced mindfulness for over thirteen years and studied with masters from around the world. In 2014, Jon completed a seven-month silent meditation retreat.

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